

1.

CASE #	CASE NAME	HEARING NAME
CVRI2203305	DOE VS ALVORD UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL DEFENDANT ALVORD UNIFIED SCHOOL DISTRICT TO COMPLY WITH PLAINTIFF'S DEMAND TO PERMIT ENTRY INTO LAND AND TO PRODUCE TANGIBLE THINGS FOR INSPECTION, PHOTOGRAPHING

Tentative Ruling:

Hearing required.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405322	AINSWORTH VS THE REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO COMPEL

Tentative Ruling:

The hearing on the motion is continued to August 31, 2026, at 8:30am, D-4.

The meet and confer declaration required by CCP § 2016.040(a) requires that “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either **in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” Here, the record shows a meet and confer letter and several emails going back and forth, but only one telephone call on October 20, 2025, discussing the scheduling of Plaintiff’s second deposition, but with no substantive discussion of the instructions not to answer. (See Baskaron Decl., paragraph 2.) Many of the disputed instructions not to answer did not occur until Plaintiff’s second deposition on November 20, 2025.

There remain ambiguities about Plaintiff’s offers and Defendant’s proposals to resolve these disputes. For example, does Plaintiff’s offer regarding the text messages encompass only a single, confirmatory question, or to broader testimony about the disposition of the messages generally? Does Plaintiff’s offer of a five-year emotional distress lookback also cover questions about prescription medications generally? Such ambiguities can easily be resolved with a live, contemporaneous discussion. Further, it appears that some of the disputed questions may have already been resolved through prior exchanges.

The parties are ordered to file a joint statement, no later than 10 days before the continued hearing date, listing each question that is still disputed and explaining what was discussed and what remains for resolution.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600286	TORRES VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

DENY

Grant Defendant's Request for Judicial Notice.

The Motion is denied because Defendant cannot show that Plaintiff agreed to binding arbitration in an enforceable contract. The arbitration provision in the Warranty Handbook does not constitute a written agreement to arbitrate. A warranty is different than a contract. Warranties, unlike contracts, do not impose binding obligations upon the buyer. (See *Weinstat v. Dentsply Int'l, Inc.* (2010) 180 Cal.App.4th 1213.) Under both federal and state law, arbitration cannot be compelled absent an arbitration agreement. (Adajar v. RWR Homes, Inc. (2008) 160 Cal.App.4th 563.) Equitable estoppel does not apply because Defendant has failed to show that the Warranty Handbook is an enforceable contract.

Plaintiff cannot be compelled to arbitrate under the Connected Services Agreement (CSA) because the declaration of Vijay Rao, Defendant's Director of Ops & Owner Apps/Web, shows that he does not have personal knowledge that Plaintiff enrolled in the CSA, and the CSA agreement only covers telematic and technology services, and Plaintiff complains of mechanical engine and transmission defects.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601592	COUNTY OF RIVERSIDE VS VELASQUEZ	MOTION FOR PRELIMINARY INJUNCTION

Tentative Ruling:

GRANT